

To Temporary Government Officers/

Permanent Benefit Certificate to employees

Regarding providing...

Government of Harashtra

General Administration Department

Government Gazette No.: STHAPRAP-1415/(P.No.14/15)/13-A

Radar Kara Ragam, Hutatra Rajguru Chowk,

Station, Mumbai-400 032.

Date of Admission: 19th September, 2017

Read :-

1) Government Gazette, General Administration Section No: Sthaprap-

1414/P.No.73/14/13-A,

Dated September 11, 2014.

2) Government Circular, General Administration Section No: Sthaprap-

1414/P.No.97/15/13-A,

Dated August 21, 2015.

3) Govt Finance, No: Training 2000/Pro.No.61/2001/39, Dated 19th Racham, 2003.

4) Government Finance, General Administration Section No: Sep-2002/P.No.14/02/12,

Dated September 02, 2003.

5) Government Finance, General Administration Section No: BCC 2009/P.No.291/09/16-

B,

Date 12 December, 2011.

6) Government Circular, General Administration Department No.: Pariksha 2012/File

No. 3/17,

dated 13th September, 2012.

7) Government Resolution, Information Technology (General Administration

Department)

No.: Matans 2012/File No. 277/39, dated 04th February, 2013.

8) Government Resolution, General Administration Department No.: Parvi-2715/File No.

302/Eight,

dated 29th February, 2016.

Preamble:

Instructions have been issued via the aforementioned Government Circular regarding the granting of confirmation (permanency) certificates to every temporary government officer/employee who has been appointed through the prescribed procedure, has completed three years of regular service in the post of initial appointment, and fulfills the terms and conditions stipulated in the Government Circular dated 11/09/2014 (Reference No. 1). However, while implementing the said circular, the General Administration Department frequently receives proposals seeking guidance on certain points from various administrative departments of the Mantralaya regarding the issuance of confirmation certificates to the officers/employees under their control.

Government Circular:

Key points from proposals received from the concerned departments, along with explanatory remarks regarding them, are provided in the accompanying "Annexure - A".

Government Circular No.: Sthapra-1415/(File No. 14/15)/13-A

2.

This Government Circular has been made available on the Government of Maharashtra's website (www.maharashtra.gov.in) under the reference code 201709191057496807. This order is being issued under digital signature.

By order and in the name of the Governor of Maharashtra.

Nilesh Dhol

Under Secretary, Government of Maharashtra



Government Circular, General Administration Department No.: Sthapra-pa 1415/(C.R. 14/15)/13-A, dated 19 September 2017

Annexure “A”

Points and clarifications regarding the issuance of the 'Certificate of Permanency Benefit'

Sr. No. | Points | Clarification

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1. | Was the employee's appointment made in the prescribed manner for the purpose of granting the 'Certificate of Permanency Benefit'? Which documents/certificates need to be verified for this? | To grant the 'Certificate of Permanency Benefit', it is primarily necessary to verify that the employee's appointment was made in the manner prescribed in the recruitment rules and that the employee has fulfilled all the terms and conditions specified in the appointment order. In all cases where it is required or stipulated in the advertisement, it is essential to ensure the fulfillment of all necessary requirements and the submission of documents—such as the Domicile Certificate, Non-Creamy Layer Certificate, Caste Validity Certificate, and MS-CIT examination certificate. Additionally, one must ensure the satisfactory completion of the probationary period (where applicable) and the completion of mandatory post-appointment training in accordance with the State's training policy.

2. How should the three years of regular service from the date of appointment be calculated for the purpose of the Certificate of Permanence?

If, during the three-year period following appointment, an officer or employee remains absent without permission or is on extraordinary leave (beyond the admissible leave sanctioned to them), or remains on sanctioned leave for a continuous period exceeding three months, then such period of absence or leave shall not be counted towards the three-year regular service period. (The period of leave taken continuously for more than three months during the relevant tenure should not be counted towards the three-year period required for the 'Certificate of Permanency Benefits'.)

3. Is it appropriate to issue a 'Certificate of Permanency Benefits' to a government officer/employee after their retirement?

Furthermore, if a retired officer/employee has been deprived of retirement-related benefits due to the absence of such a certificate—despite fulfilling all prescribed terms and conditions—a 'Certificate of Permanency Benefits' may be issued to them with retrospective effect, even after the date of retirement. This action must be taken by the office from which the individual retired. However, regarding a person working on a post

eligible for retirement benefits... [Government Circular No. Sthapra-1415/(Pra.Kra.14/15)/13-A]

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...is a 'Certificate of Permanency Benefits' required or not? If an officer/employee passes away while in service and their family is deprived of service-related pensionary benefits solely due to the absence of a 'Confirmation of Permanency' certificate, the concerned administrative department may decide to grant an exemption from specific prescribed conditions that were not met in that case.

4. Should a 'Confirmation of Permanency' certificate be issued again—and if so, how—to all officers promoted to Group-A posts, even if they had already received such a certificate while serving in their previous post?

If a government officer/employee is appointed to a Group-A post via promotion and requests a 'Confirmation of Permanency' certificate, and if all prescribed conditions for issuing such a certificate are met upon assuming the Group-A post (notwithstanding the fact that they held such a certificate for their previous post), then a fresh 'Confirmation of Permanency' certificate should be issued to the officer for the Group-A post.

5. If an employee, having been issued a 'Confirmation of Permanency' certificate for a specific post, is subsequently appointed to another post via nomination, absorption, or permanent transfer, should a 'Confirmation of Permanency' certificate be issued for the new post? Regardless of whether an officer/employee holds a confirmation certificate for their initial appointment, if they are subsequently appointed to a different post via nomination—and provided the two posts are not equivalent or their duties and responsibilities differ—a confirmation certificate for the second post should be granted upon their completion of three years of prescribed service in that post and fulfillment of the conditions prescribed for confirmation in that post.

6. Should a confirmation certificate be granted to an employee upon their attaining a specific age?

Once a government employee attains a specific age, if they fulfill all prescribed conditions for confirmation—excluding only those conditions from which an exemption is permissible (such as post-entry training examinations or computer proficiency certification)—then the confirmation certificate may be granted effective from the date the exemption becomes applicable.